



CHAPTER cxi.

An Act to confer further powers upon the Alexandra Park and Palace Trustees with respect to the temporary closing and use of the park and palace for exhibitions to extend the period for which portions of the park and palace may be let and for other purposes.

A.D. 1913.

[15th August 1913.]

WHEREAS by the Alexandra Park and Palace (Public Purposes) Act 1900 (hereinafter referred to as "the Act of 1900") a body corporate of Trustees (hereinafter called "the Trustees") was constituted to acquire and thereafter to maintain and manage as a place of public resort and recreation the lands and buildings known as the Alexandra Park and Palace (hereinafter referred to as "the park") in the districts of Hornsey and Wood Green in the county of Middlesex :

63 & 64 Vict.
c. celix.

And whereas the Trustees consist of representatives elected by the county council of Middlesex and other local bodies by whom the money necessary for the purposes of the Act of 1900 was contributed and it was provided by the Act of 1900 that each authority so contributing should be entitled to one representative for each complete sum of £7,000 so contributed :

And whereas the park now comprises an area of about one hundred and ninety acres with a large main building therein and subsidiary or ancillary buildings and conveniences :

And whereas the powers and duties of the Trustees in respect of the park are regulated and defined by section 17 of the Act of 1900 as amended by the Alexandra Park and Palace Act 1903 (hereinafter referred to as "the Act of 1903") and

3 Edw. 7.
c. clxxix.

[Ch. cxi.] *Alexandra Park and Palace Act, 1913.* [3 & 4 GEO. 5.]

A.D. 1913. — they are thereby authorised subject to the terms and conditions therein set forth to let on lease for terms not exceeding three years portions of the park and to close and make charges for the use of the whole or portions thereof upon not more than fourteen days in any one year:

And whereas the maintenance upkeep and continuance of the park as a place of public resort and recreation is wholly dependent upon the revenue derived from the letting and closing of portions of the park and the Trustees have no other means either by resort to public funds or rates or otherwise of providing the moneys necessary for so maintaining and continuing the park:

And whereas the park is suitable for the holding of exhibitions shows and other displays and it is expedient that the Trustees should be empowered to enter into and carry into effect contracts agreements and arrangements with respect to the periodical holding therein of exhibitions shows and other displays and that the public rights therein should be modified during such exhibitions and the Trustees or their lessees or licencees empowered to take charges for admission to and for other purposes in connection with such exhibitions shows or displays:

And whereas it is expedient that the powers of the Trustees to let on lease portions of the park should be extended as in this Act provided and that the Trustees should be authorised to set apart and let or by licence permit the exclusive use of portions of the park for purposes of games or recreation or as playgrounds for schools and for concerts and entertainments:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Alexandra Park and Palace Act 1913.

Powers as to holding exhibitions &c.

2.—(1) The Trustees may enter into and carry into effect contracts agreements and arrangements with any company body

or person for holding at the park exhibitions shows or other displays and may for any such purpose close for any period or periods not exceeding nine months at any one time any portion not exceeding fifty acres in extent of the park and exclude the public therefrom otherwise than upon payment. A.D. 1913.

(2) Any such contract or agreement may contain such covenants conditions and stipulations as the Trustees may think fit and shall contain provisions for the restoration and making good of the park or portion thereof at the completion of the period mentioned in any such contract or agreement.

(3) The Trustees may in and for the purposes of any such contract or agreement authorise the erection of temporary buildings in connection with any such exhibition show or display and such buildings may be erected accordingly Provided always that the Trustees shall not construct any such temporary building over or within ten feet of the existing 9-inch main and the existing 16-inch main of the Metropolitan Water Board extending from Newlands Road to Bedford Road and situate to the eastward of the existing racecourse.

(4) In respect of any such exhibition show or other display as aforesaid the Trustees or subject to the sanction of the Trustees the promoters thereof may—

(a) Make charges for admission thereto and for any facilities afforded therein and for entrance to or seating accommodation in any building stand or particular part of such exhibition show or display; and

(b) Make rules and regulations governing admission to and the conduct of persons in and approaching or leaving the same and for regulating their employees.

(5) No such contract agreement or arrangement shall be made without the consent of two-thirds of the Trustees present at a special meeting of the Trustees called after not less than fourteen days' notice of the meeting and of the business to be transacted thereat.

(6) No portion of the park shall be closed under the powers of this section for periods longer in the aggregate than two years in any one period of six years.

(7) The Trustees shall give notice in writing of their intention to hold any second or subsequent exhibition show or display to the local authority of the district in which the

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A.D. 1913. — exhibition show or display is proposed to be held (in this section called "the local authority") and such notice shall be accompanied by a statement setting forth the nature and the objects of the exhibition show or display and if the local authority within two months after the receipt of such notice and statement object thereto in writing on the ground that the holding of such exhibition show or display will be a source of annoyance to the inhabitants in the neighbourhood of the park and shall satisfy an arbitrator to be agreed upon by the Trustees and the local authority or failing agreement to be appointed on the application of either party by the Local Government Board that there is reasonable ground for such objection such exhibition show or display shall not be held and no preparations for the holding of such exhibition show or display (other than negotiations) shall be commenced until such objection shall be withdrawn or the arbitrator shall have given his decision.

(8) Nothing in this section shall exonerate the Trustees or any company or person as the case may be from any indictment action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them.

(9) All moneys derived by way of rent or other consideration for the use of the park for the purposes of this section shall be applied under and for the purposes of the Act of 1900.

Temporary
buildings.

3. All temporary or movable buildings erected under the provisions of this Act or in connection with an exhibition show or display held under the powers of this Act on any portion of the park within the urban district of Wood Green shall be subject to the provisions of section 28 of the Wood Green Urban District Council Act 1903 :

Provided that if the Wood Green Urban District Council refuse their permission for or disapprove of any intended building the Trustees may appeal against such refusal or disapproval to a court of summary jurisdiction within seven days after the service of the notice of disapproval provided they give written notice of such appeal and the grounds thereof to the clerk to the said council and the court shall have power to make such order as the court may think fit.

Extension
of powers of
letting por-

4. The period for which the Trustees may under the provisions of subsection (v) of section 17 of the Act of 1900

let the theatre concert room or any portion of the palace or other buildings is hereby extended to twenty-one years and the Trustees may in addition let for a like period any part or parts of the park not exceeding in the whole twenty acres for games or for purposes of recreation or for playgrounds in connection with any school whether public elementary or otherwise. Provided that the portion of the park referred to in the said subsection (v) of section 17 of the Act of 1900 which was at the passing of the Act of 1900 and now is let as a racecourse shall not be let as a racecourse for any term in excess of fourteen years.

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tions of
park.

5. Notwithstanding anything contained in the Act of 1900 as amended by the Act of 1903 or in this Act no portion of the park shall be used as a ground for the playing of football by professional or paid players.

No portion of
park to be
used as a pro-
fessional foot-
ball ground.

6. Any buildings hereafter erected and used or intended to be used for human habitation on any part of the park shall be subject to the provisions of the Public Health Act 1875 and any Acts amending the same and to the byelaws and regulations of the local authority made thereunder.

As to build-
ings erected
and used
for human
habitation.

7. The Trustees may temporarily set apart appropriate and enclose any part of the park not exceeding fifteen acres for the purpose of concerts meetings or entertainments and make charges for admission thereto.

Temporary
use of parts
of park for
concerts &c.

8. The Trustees may let for a period not exceeding twenty-one years any rights exclusive or otherwise of selling and supplying refreshments to the public resorting to and using the park and may permit the erection for those purposes of such buildings and the enclosure and provision of such space and accommodation as may be requisite or necessary for adequate and proper catering.

As to letting
of rights to
cater.

9. The Trustees may let the right of erecting or permit or license the erection or construction of buildings for use or enjoyment of the public and may by any such lease licence or permission authorise the taking of charges for the use thereof.

Provision and
charging for
use of build-
ings for public
use or enjoy-
ment.

10. The provisions of this Act shall be in addition to any of the powers rights and privileges of the Trustees under section 17 of the Act of 1900 as amended by the Act of 1903.

Saving
existing
rights of
Trustees.

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Costs of Act.

11. The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act shall be paid by the Trustees.

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